



CONSTITUTIONAL LAW

MASTER ATTACK OUTLINE

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Exam-Ready Reference

All Doctrines · Decision Trees · Case Tables · Fisher Strategies

CONSTITUTIONAL LAW — MASTER ATTACK OUTLINE

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PART I: JUSTICIABILITY & JUDICIAL REVIEW

1. Judicial Review — *Marbury v. Madison* (1803)

Rule: The Supreme Court has the authority to declare acts of Congress unconstitutional. "It is emphatically the province and duty of the judicial department to say what the law is."

Fisher Alert: This is the structural bedrock. Every ConLaw answer begins with the assumption that the Court can review the law.

2. Standing (Article III, § 2)

The *Lujan* Three-Prong Test

PRONG	REQUIREMENT	KEY CASE
Injury in Fact	Concrete, particularized, actual/imminent	<i>Lujan v. Defenders of Wildlife</i>
Causation	Fairly traceable to defendant's conduct	<i>Allen v. Wright</i>
Redressability	Favorable decision would likely remedy injury	<i>Simon v. Eastern KY Welfare Rights</i>

Decision Tree: Standing

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Does P have INJURY IN FACT?
├─ NO → No Standing. Case dismissed.
└─ YES → Is injury TRACEABLE to D's conduct?
    ├─ NO → No Standing.
    └─ YES → Would a favorable ruling REDRESS the injury?
        ├─ NO → No Standing.
        └─ YES → P HAS STANDING. Proceed to merits.
  
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Special Standing Rules

DOCTRINE	RULE	KEY CASE
Taxpayer Standing	Generally NO standing to challenge federal spending. Exception: Establishment Clause challenges to congressional exercises of taxing/spending power	<i>Flast v. Cohen</i>
Third-Party Standing	Generally NO. Exception: close relationship + hindrance to third party asserting own rights	<i>Craig v. Boren</i> (beer vendor for young men)
Organizational Standing	Org can sue on behalf of members if: (1) members have standing; (2) interests germane to purpose; (3) individual participation not required	<i>Hunt v. Washington Apple</i>

3. Mootness & Ripeness

DOCTRINE	RULE	EXCEPTION
Mootness	Case must present a live controversy at all stages	"Capable of repetition yet evading review" (<i>Roe v. Wade</i>)
Ripeness	Case must not be premature; actual harm must be imminent	Pre-enforcement challenges allowed if threat of prosecution is credible

4. Political Question Doctrine — *Baker v. Carr* (1962)

The Baker Factors (any one = political question): 1. Textually demonstrable constitutional commitment to another branch 2. Lack of judicially discoverable/manageable standards 3. Impossibility of deciding without an initial policy determination 4. Impossibility of resolving without disrespecting another branch 5. Unusual need for unquestioning adherence to a political decision 6. Potential for embarrassment from conflicting pronouncements

Fisher Tip: Gerrymandering (*Rucho v. Common Cause*) = political question. Malapportionment (*Baker v. Carr*) = justiciable.

PART II: FEDERAL LEGISLATIVE POWER

1. The Commerce Clause (Art. I, § 8, cl. 3)

The *Lopez* Three Categories

CATEGORY	DEFINITION	EXAMPLE
Channels	Highways, waterways, internet, airways	<i>Heart of Atlanta Motel</i>
Instrumentalities	Persons/things in interstate commerce (trucks, planes, people)	<i>Shreveport Rate Cases</i>
Substantial Effects	Activities with a substantial effect on interstate commerce	<i>Wickard v. Filburn</i> , <i>Gonzales v. Raich</i>

Decision Tree: Commerce Clause

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Is the regulated activity in a CHANNEL of interstate commerce?
├── YES → Valid under Commerce Power.
└── NO → Is it an INSTRUMENTALITY or person/thing IN commerce?
    ├── YES → Valid.
    └── NO → Does it have a SUBSTANTIAL EFFECT on interstate commerce?
        ├── Is it ECONOMIC activity? (*Raich*)
        │   ├── YES → Aggregate effects. Rational basis. Congress wins.
        │   └── NO → (*Lopez*/Morrison*) Apply 4 factors:
        │       1. Is it economic? (NO = bad for govt)
        │       2. Jurisdictional element? (hook to specific interstate
        │       nexus)
        │       3. Congressional findings? (helpful but not dispositive)
        │       4. Attenuation? (too many causal steps = fails)
        └── NO → Beyond Commerce Power.
  
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⚠ The *NFIB v. Sebelius* Anti-Commandeering Limit

Rule: Congress can regulate existing activity but cannot **compel** individuals to enter commerce. The individual mandate was NOT valid under Commerce Clause because "inactivity" ≠ "activity."

Fisher Trap: The mandate was upheld under the **Taxing Power** — the "penalty" functioned as a "tax" (produces revenue, paid to IRS, no scienter requirement).

2. The Necessary & Proper Clause (Art. I, § 8, cl. 18)

Rule (*McCulloch v. Maryland*): "Let the end be legitimate, let it be within the scope of the constitution, and all means which are appropriate, which are plainly adapted to that end, which are not prohibited, but consist with the letter and spirit of the constitution, are constitutional."

Modern Limit (*Comstock*): The N&P Clause can support federal civil commitment of sexually dangerous prisoners — 5-factor test: 1. Broad, not narrow, construction of N&P 2. Long history of federal involvement 3. Sound reasons for the statute 4. The statute accommodates state interests 5. The statute is narrow in scope

3. Taxing & Spending Power (Art. I, § 8, cl. 1)

Taxing Power

- Congress can tax virtually anything as long as it produces some revenue
- *NFIB*: "Shared responsibility payment" = tax (not a penalty) because it was paid to IRS, produced revenue, and had no scienter requirement

Spending Power — *South Dakota v. Dole* (1987)

FACTOR	REQUIREMENT
General Welfare	Spending must serve general welfare (broad deference)
Unambiguous Conditions	States must know what they're agreeing to
Germaneness	Conditions must relate to the federal interest in the program
No Independent Bar	Cannot violate other constitutional provisions
No Coercion	Cannot be so coercive it's a "gun to the head" (<i>NFIB</i>)

Fisher Alert: *NFIB* Medicaid expansion was unconstitutional coercion — threatening to revoke ALL existing Medicaid funding (10%+ of state budgets) was "economic dragooning."

4. The Tenth Amendment & Anti-Commandeering

PRINCIPLE	RULE	KEY CASE
Anti-Commandeering (Legislative)	Congress cannot compel state legislatures to enact/enforce federal programs	<i>New York v. United States</i>
Anti-Commandeering (Executive)	Congress cannot compel state executive officers to administer federal programs	<i>Printz v. United States</i>
General Applicability OK	Laws that apply to states AND private parties are fine	<i>Garcia v. San Antonio</i>

PART III: DORMANT COMMERCE CLAUSE (DCC)

Decision Tree: DCC Analysis

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Does a STATE law burden interstate commerce?
├─ Is there a FEDERAL LAW on point?
│   ├── YES → Preemption analysis (see Part IV). DCC doesn't apply.
│   └─ NO → Continue DCC.
├─ Does the law DISCRIMINATE against out-of-state commerce?
│   ├── ON ITS FACE → Virtually Per Se Invalid. Strict Scrutiny.
│   │   └─ State must prove: (1) Compelling interest AND (2) No non-
│   │       discriminatory alternatives
│   │       Key cases: *Philadelphia v. NJ* (waste); *Dean Milk* (milk)
│   ├── IN EFFECT → Same Strict Scrutiny analysis
│   │   └─ *Hunt v. Washington Apple* (labeling law = facial neutrality,
│   │       discriminatory effect)
│   └─ NO (Truly Neutral) → Apply the PIKE BALANCING TEST
│       └─ Does the burden on interstate commerce CLEARLY EXCEED
│           the putative local benefits?
│           ├── YES → Unconstitutional
│           └─ NO → Law is upheld
│               Key case: *Pike v. Bruce Church*
└─ EXCEPTION: Market Participant Doctrine
    └─ State acting as BUYER/SELLER (not regulator) → DCC doesn't apply
        *Hughes v. Alexandria Scrap*; *Reeves v. Stake*
  
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Key Distinctions Table

IF THE LAW...	STANDARD	GOVT WINS?
Facially discriminates	Virtual per se invalidity	Almost never
Discriminates in effect	Strict Scrutiny	Rarely
Is neutral but burdensome	<i>Pike</i> Balancing	Usually
State is market participant	No DCC review	Always

DCC vs. Privileges & Immunities (Art. IV, § 2)

FEATURE	DCC	P&I CLAUSE
Protects	Interstate commerce flow	Individual "fundamental" rights (livelihood)
Who can sue?	Anyone (including corps)	Only natural persons (NO corporations)
Market Participant?	Exception applies (state immune)	NO exception — <i>Camden</i>
Standard	<i>Pike</i> or Strict Scrutiny	<i>United Building v. Camden</i> : (1) Does law burden fundamental right? (2) Is there substantial reason? (3) Is it closely tailored?

Fisher Exam Tip: If the plaintiff is a **corporation** → DCC only. If the plaintiff is a **person** and the state is a **market participant** → P&I is the only option (*Camden*).

PART IV: PREEMPTION (Supremacy Clause, Art. VI)

Decision Tree: Preemption

Is there a FEDERAL LAW and a STATE LAW on the same topic?

- EXPRESS PREEMPTION: Does federal law explicitly say "states may not ..."?
 - YES → State law preempted. End.
 - NO → Continue.
- FIELD PREEMPTION: Does federal regulation so thoroughly occupy the field that it leaves no room for state law?
 - YES → State law preempted. (*Arizona v. US* – immigration)
 - NO → Continue.
- CONFLICT PREEMPTION:
 - IMPOSSIBILITY: Is it physically impossible to comply with both?
 - YES → State law preempted.
 - NO → Continue.
 - OBSTACLE: Does state law stand as an obstacle to federal objectives?
 - YES → State law preempted. (*Hines v. Davidowitz*)
 - NO → State law SURVIVES. Both enforced.
- PRESUMPTION: Against preemption in areas of traditional state regulation (*Medtronic v. Lohr*)

PART V: SEPARATION OF POWERS

1. Executive Power Framework — *Youngstown* (Jackson Concurrence)

ZONE	DESCRIPTION	STANDARD
Zone 1	President acts WITH congressional authorization	Maximum authority. Presumption of validity.
Zone 2	President acts in congressional SILENCE	"Zone of twilight." Concurrent authority. Case-by-case.
Zone 3	President acts AGAINST congressional will	"Lowest ebb." Power at minimum. Can only prevail if Congress lacks authority over the matter.

2. Executive Privilege & Immunity

DOCTRINE	RULE	KEY CASE
Executive Privilege	Presumptive privilege for presidential communications; yields to specific need in criminal proceedings	<i>United States v. Nixon</i>
Civil Immunity	Absolute immunity for official acts; NO immunity for unofficial/private acts	<i>Clinton v. Jones</i> ; <i>Nixon v. Fitzgerald</i>
Criminal Immunity	Absolute for core Art. II functions; Presumptive for official acts; None for unofficial acts	<i>Trump v. United States</i> (2024)

Trump v. United States — Tripartite Immunity Test

Was the President's act ...

└ A CORE constitutional function (e.g., pardon, commander-in-chief)?

└ ABSOLUTE IMMUNITY. Cannot be prosecuted. Period.

└ An OFFICIAL ACT (within outer perimeter of duties)?

└ PRESUMPTIVE IMMUNITY. Prosecution must prove no intrusion on executive function.

└ An UNOFFICIAL/PRIVATE act?

└ NO IMMUNITY. Fully subject to prosecution.

3. Non-Delegation Doctrine

Rule: Congress cannot delegate legislative power without an "intelligible principle" to guide the executive. (*Whitman v. American Trucking*)

Reality: The Court has only struck down delegations twice (both 1935). Modern delegations are almost always upheld.

4. Appointment & Removal

POWER	RULE
Appointments (Art. II, § 2)	Principal officers: President appoints, Senate confirms. Inferior officers: Congress may vest in President, courts, or department heads.
Removal	President has implied removal power over executive officers (<i>Myers</i>). Congress can limit removal of quasi-judicial/quasi-legislative officers to "good cause" (<i>Humphrey's Executor</i>).

Continued in Part 2...

PART VI: INCORPORATION

The Doctrine

Rule: The 14th Amendment's Due Process Clause **selectively incorporates** most Bill of Rights protections against the states.

APPROACH	DESCRIPTION	STATUS
Total Incorporation	All of the Bill of Rights apply to states	Rejected (Black's view)
Selective Incorporation	Only "fundamental" rights apply	Current Law (<i>McDonald v. Chicago</i>)
Total Inc. + Extras	All BoR + other unenumerated rights	Rejected (but SDP does add extras)

Test: Is the right "fundamental to our scheme of ordered liberty" or "deeply rooted in this Nation's history and tradition"?

Not Incorporated: Grand Jury indictment (5th), Excessive fines (partially), Civil jury trial (7th — *but* see recent developments).

PART VII: SUBSTANTIVE DUE PROCESS (SDP)

The Two Competing Methodologies

METHOD	APPROACH	CHAMPION	MODERN STATUS
Glucksberg ("Narrow")	Right must be "deeply rooted in history and tradition" + "carefully described"	Rehnquist, Alito	DOMINANT after <i>Dobbs</i>
Lawrence/Obergefell ("Broad")	Tradition is a "living thing"; look at emerging awareness of injustice	Kennedy, Souter	Weakened but not dead

The Text, History & Tradition (THT) Framework (*Bruen/Dobbs/Heller*)

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Is a FUNDAMENTAL RIGHT claimed?
├─ Step 1: Is the right DEEPLY ROOTED in this Nation's history and tradition?
│   ├── YES → Fundamental right. Apply Strict Scrutiny.
│   └── NO → NOT a fundamental right. Apply Rational Basis.
├─ Step 2: CAREFULLY DESCRIBE the right (narrow framing per Glucksberg)
│   └── "Right to physician-assisted suicide" NOT "right to autonomy"
└─ Step 3: HISTORICAL ANALOGUES – is there a historical tradition of
    regulating this conduct? (*Bruen* for 2A; *Dobbs* for abortion)
  
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Fisher Exam Strategy: - Want law **upheld**? → Cite *Glucksberg* THT. Frame right narrowly. Show no historical protection. - Want law **struck down**? → Cite *Lawrence/Obergefell* dignity framework. Frame right broadly.

The SDP Evolution: Key Cases

A. Economic SDP (Dead)

ERA	RULE	KEY CASE
Lochner Era (1905–1937)	"Liberty of contract" is fundamental; courts will second-guess economic regulation	<i>Lochner v. New York</i>
Post-New Deal (1937+)	Economic regulation gets Rational Basis only; courts defer completely	<i>West Coast Hotel v. Parrish</i> ; <i>Williamson v. Lee Optical</i>

Fisher Tip: *Lochner* is the "ghost" — any time a Justice accuses the majority of "judicial activism," they invoke *Lochner*. The fear of being a "Lochner court" constrains SDP expansion.

B. Privacy & Contraception

CASE	RULE
<i>Griswold v. CT</i> (1965)	Right to marital privacy → "penumbras" of BoR → struck down contraception ban for married couples
<i>Eisenstadt v. Baird</i> (1972)	Extended to unmarried individuals — "If the right means anything, it is the right of the individual"

C. Abortion — The Doctrinal Arc

CASE	STANDARD	STATUS
<i>Roe v. Wade</i> (1973)	Trimester framework; right to abortion is fundamental	OVERRULED
<i>Planned Parenthood v. Casey</i> (1992)	Undue Burden test replaces trimesters; viability line retained	OVERRULED
<i>Dobbs v. Jackson</i> (2022)	No constitutional right to abortion. Returned to states. Rational Basis.	CURRENT LAW

Dobbs — The Controlling Framework

Holding: The Constitution does not confer a right to abortion. *Roe* and *Casey* are overruled.

The Test Applied: 1. Is abortion "deeply rooted in history and tradition"? → **NO** (criminalized in 3/4 of states at ratification of 14th Amendment) 2. Is it "implicit in the concept of ordered liberty"? → **NO** 3. Therefore: **Rational Basis Review** → Mississippi's 15-week ban is rationally related to legitimate interests (potential life, maternal health, medical ethics)

Fisher Traps: - *Dobbs* does NOT say states must ban abortion — only that states MAY - The *Dobbs* majority insists its logic does NOT threaten *Griswold*, *Lawrence*, or *Obergefell* (but Concurrence Thomas disagrees) - **Exam move:** Always mention the Thomas concurrence suggesting ALL SDP rights should be reconsidered

D. Marriage as a Fundamental Right

CASE	RULE	SCRUTINY
<i>Loving v. Virginia</i> (1967)	Marriage is a "basic civil right of man"; anti-miscegenation laws fail Strict Scrutiny on EP AND DP grounds	Strict
<i>Zablocki v. Redhail</i> (1978)	Cannot condition marriage on payment of child support	Strict
<i>Turner v. Safley</i> (1987)	Even prisoners retain fundamental right to marry	Reasonableness (prison context)
<i>Obergefell v. Hodges</i> (2015)	Same-sex couples have fundamental right to marry under DP + EP "synergy"	Effectively Strict (Kennedy never says it)

Obergefell — The "Double Helix"

Kennedy's Four Principles: 1. Individual autonomy in marriage choice 2. Marriage supports a unique two-person union 3. Marriage safeguards children and families 4. Marriage is a "keystone of social order"

The Synergy: DP protects the liberty to marry; EP ensures the state can't grant it to some but deny it to others. Together they create a "double helix" — the state cannot "level down" by abolishing marriage entirely.

Fisher Exam Strategy: If a fact pattern involves a "dignity" interest: 1. Argue Strict Scrutiny (fundamental right under *Loving/Skinner*) 2. Alternative: "Rational Basis with Bite" — moral disapproval/animus is never legitimate (*Romer/Lawrence*)

E. The "Right to Die" Spectrum

CATEGORY	LEGAL STATUS	KEY CASE
Refusing treatment (competent patient)	Protected liberty interest	<i>Cruzan</i> (assumed)
Refusing treatment (incompetent)	State may require "clear and convincing evidence"	<i>Cruzan</i>
Physician-assisted suicide	NOT a fundamental right	<i>Glucksberg</i>
Active euthanasia	No protection; state can criminalize	No case on point

Glucksberg — The "History and Tradition" Fortress

Holding: No fundamental right to physician-assisted suicide. Rational Basis.

State Interests (all legitimate): 1. Preserving human life 2. Preventing suicide 3. Protecting vulnerable populations (elderly/disabled) 4. Protecting medical profession integrity 5. Preventing slippery slope to euthanasia

Fisher Tip — Distinguish the Methods: - **Passive** (removing a tube) = *Cruzan* = more protected - **Active** (providing a pill) = *Glucksberg* = not protected - **Palliative care** (pain meds that hasten death) = "Double Effect" loophole — intent is pain relief, not death

F. Sexual Intimacy

CASE	RULE	
<i>Bowers v. Hardwick</i> (1986)	No fundamental right to sodomy (defined narrowly)	OVERRULED
<i>Lawrence v. Texas</i> (2003)	Adults have liberty interest in consensual intimate conduct. Anti-sodomy laws violate SDP. Kennedy avoids naming scrutiny level.	

Lawrence's Lasting Impact: - "Moral disapproval" alone is NOT a legitimate state interest - Paved the way for *Windsor* → *Obergefell* - Uses "Rational Basis with Bite" (or dignity-based review)

PART VIII: PROCEDURAL DUE PROCESS (PDP)

Step 1: Is There a Protected Interest?

TYPE	SOURCE	KEY CASE
Life	Self-evident	—
Liberty	Freedom from physical restraint + other fundamental interests	<i>Board of Regents v. Roth</i>
Property	NOT just real property — includes entitlements, licenses, welfare benefits, continued employment (if "for cause" only)	<i>Goldberg v. Kelly</i> ; <i>Roth</i>

The "New Property" (*Goldberg v. Kelly*): Government benefits (welfare, licenses, permits) = property interests if there's a legitimate claim of entitlement under state law.

Fisher Tip: "Rights vs. Privileges" distinction is DEAD. If the government creates an entitlement, they must provide process before taking it away.

Step 2: What Process Is Due?

The *Mathews v. Eldridge* Balancing Test (1976)

Three Factors to Balance:

- (1) Private Interest: How important is the interest to the individual?
- (2) Risk of Error: What's the risk of erroneous deprivation under current procedures? Would additional safeguards reduce that risk?
- (3) Government Interest: What's the fiscal and administrative burden of additional process?

SITUATION	PROCESS REQUIRED	CASE
Welfare termination	Pre-termination hearing (oral)	<i>Goldberg v. Kelly</i>
Disability benefits	Post-termination paper review sufficient	<i>Mathews v. Eldridge</i>
Public employment (for cause)	Pre-termination notice + opportunity to respond	<i>Cleveland Bd. v. Loudermill</i>
Reputation alone	NO due process (stigma alone ≠ liberty) unless coupled with loss of tangible interest ("stigma-plus")	<i>Paul v. Davis</i>

Fisher Alert — "Good Name" Interest: You have a property interest in your reputation only if the government's defamatory statement is accompanied by a concrete loss (firing, license revocation). Stigma alone = no process due.

Continued in Part 3...

PART IX: EQUAL PROTECTION (14th Amend. § 1)

"No State shall... deny to any person within its jurisdiction the equal protection of the laws."

Structural Note: EP applies to **states** via the 14th Amendment. It applies to the **federal government** via the 5th Amendment Due Process Clause ("Reverse Incorporation" — *Bolling v. Sharpe*).

THE MASTER SCRUTINY TABLE

LEVEL	CLASSIFICATION	TEST	BURDEN	GOV'T WINS?
Strict Scrutiny	Race, National Origin, Alienage (state law)	Compelling interest + Narrowly tailored	Government	Rarely
Intermediate Scrutiny	Sex/Gender	Important interest + Substantially related + "Exceedingly persuasive justification"	Government	Sometimes
Rational Basis	Age, Disability, Poverty, Economic regulation	Legitimate interest + Rationally related	Challenger	Almost never (gov't wins)
Rational Basis "with Bite"	Animus-based laws targeting unpopular groups	Legitimate interest + Rationally related (but Court actually looks closely)	Unclear (Court says challenger)	Gov't loses when animus found

DECISION TREE: Equal Protection Analysis

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Does a LAW treat people DIFFERENTLY?
├── YES → What is the BASIS of the classification?
│   ├── RACE or NATIONAL ORIGIN → STRICT SCRUTINY
│   │   ├── Is the law FACIALLY discriminatory?
│   │   │   ├── YES → Strict Scrutiny automatically
│   │   │   └── NO (Facially Neutral) → Must prove DISCRIMINATORY INTENT
│   │   │       ├── Impact alone NOT enough (*Washington v. Davis*)
│   │   │       └── Use *Arlington Heights* factors to find intent
│   │   └── Apply: Compelling Interest + Narrow Tailoring
│   ├── SEX/GENDER → INTERMEDIATE SCRUTINY
│   │   ├── Facially discriminatory? → Intermediate automatically
│   │   ├── Facially neutral? → Must prove intent (*Feeney* "because of" test)
│   │   └── Apply: Important Interest + Substantially Related
│   │       + "Exceedingly Persuasive Justification" (*VMI*)
│   ├── ALIENAGE →
│   │   ├── STATE law → Strict Scrutiny (general rule)
│   │   │   └── EXCEPTION: "Political Function" jobs → Rational Basis
│   │   │       (cops, teachers = OK to exclude; notaries = NOT OK)
│   │   └── FEDERAL law → Rational Basis (broad deference to immigration
│   │       power)
│   ├── AGE / DISABILITY / WEALTH → RATIONAL BASIS
│   │   ├── BUT check for ANIMUS → *Cleburne*/*Moreno*/*Romer*
│   │   └── "Bare desire to harm" is NEVER legitimate
│   └── NO differential treatment → No EP claim.
  
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SECTION 1: RATIONAL BASIS REVIEW

The Standard

Rule: A classification is constitutional if it is **rationaly related** to a **legitimate** state interest. The court **hypothesizes** reasons — the government doesn't need to articulate its actual purpose.

PRINCIPLE	RULE	CASE
Hypothesized Reasons OK	Court can invent a reason the legislature never stated	<i>Railway Express v. NY; Fritz</i>
One Step at a Time	Legislature can attack a problem piecemeal	<i>Williamson v. Lee Optical</i>
Underinclusivity OK	Law need not address all evils at once	<i>Railway Express</i>
Overinclusivity OK	Law can be imperfect in its reach	<i>Lee Optical</i>

Rational Basis "with Bite" — The Animus Exception

CASE	WHAT HAPPENED	WHY IT FAILED
<i>USDA v. Moreno</i> (1973)	Food stamp denial to "hippie" households	"Bare desire to harm a politically unpopular group" = never legitimate
<i>City of Cleburne</i> (1985)	Zoning denied for group home for disabled	Frat houses/nursing homes allowed in same zone → irrational prejudice, not safety
<i>Romer v. Evans</i> (1996)	CO amendment stripped all LGBT protections	"Animus" — law so broad it could only be explained by hostility
<i>Village of Willowbrook v. Olech</i> (2000)	33-ft easement demanded vs. 15-ft for neighbors	"Class of one" — irrational and wholly arbitrary treatment of individual

Fisher Tip: Even when alleging animus, if the government can articulate a good economic rational basis, the law will **probably** be upheld (*Beazer*). Merely alluding to animus isn't enough.

SECTION 2: RACE DISCRIMINATION

A. The Historical Arc

ERA	DOCTRINE	KEY CASE
1880	Political rights protected	<i>Strauder v. WV</i> (jury exclusion struck down)
1896	"Separate but Equal"	<i>Plessy v. Ferguson</i>
1938–50	Attacking "Equal" in graduate schools	<i>Sweatt v. Painter</i> (intangibles)
1954	"Separate is inherently unequal"	<i>Brown v. Board</i>
1955	Remedy: "All deliberate speed"	<i>Brown II</i>
1967	Interracial marriage protected	<i>Loving v. Virginia</i>
1968	Affirmative duty to integrate "root and branch"	<i>Green v. County School Bd.</i>

B. Proving Discrimination — Facial vs. Neutral Laws

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Is the law FACIALLY discriminatory (mentions race)?
├ YES → STRICT SCRUTINY automatically
│   ├── Even "equal application" is no defense (*Loving*)
│   └── Even in PRISON → Strict Scrutiny (*Johnson v. California*)
└ NO (Facially Neutral) →
    Must prove DISCRIMINATORY PURPOSE/INTENT
    ├── Impact alone is NOT enough (*Washington v. Davis*)
    └── Use the *ARLINGTON HEIGHTS* factors:
        1. Disproportionate impact (starting point, not enough alone)
        2. Historical background of discrimination
        3. Sequence of events (sudden rule changes)
        4. Procedural departures (skipped meetings/notice)
        5. Substantive departures (ignored usual criteria)
        6. Legislative history (floor statements, minutes)
    └ If plaintiff proves race was a "MOTIVATING FACTOR":
        → BURDEN SHIFTS to government (*Mt. Healthy*)
        → Gov't can survive if it proves SAME DECISION
           would have been made anyway ("but-for" defense)
  
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C. *Korematsu* and Facial Discrimination Against Minorities

Birth of Strict Scrutiny: "All legal restrictions which curtail the civil rights of a single racial group are immediately suspect... courts must subject them to the most rigid scrutiny." — *Korematsu v. United States* (1944)

Overruled: *Trump v. Hawaii* (2018): "Korematsu was gravely wrong the day it was decided."

Fisher Exam Move: If government claims "national security" for a racial classification: 1. State Strict Scrutiny applies (*Korematsu/Loving*) 2. Argue *Korematsu* is "gravely wrong" per *Trump v. Hawaii* 3. Apply Narrow Tailoring: Could non-racial means achieve safety? (Usually yes)

D. Affirmative Action — The Rise and Fall

CASE	HOLDING	STATUS
<i>Bakke</i> (1978)	Quotas = unconstitutional. "Plus factor" for diversity = OK. Powell's "Harvard Plan."	Superseded
<i>Grutter v. Bollinger</i> (2003)	Law school holistic review OK — diversity is compelling	OVERRULED
<i>Gratz v. Bollinger</i> (2003)	Mechanical point system = unconstitutional (not individualized)	Still good law
<i>Fisher I</i> (2013)	Courts must apply Strict Scrutiny rigorously, not defer to university	Still good law
<i>SFFA v. Harvard</i> (2023)	Race-conscious admissions unconstitutional. No measurable goals, relies on stereotypes, no logical endpoint.	CURRENT LAW

Current Rule: ALL racial classifications get **Strict Scrutiny** regardless of "benign" or "hostile" motive.

Permissible Justifications: -  Remedying **specific, proven** past discrimination by that entity -  Remedying "societal discrimination" (too amorphous) -  Diversity in higher education (expired per *SFFA*)

Fisher Tip: Never say "reverse discrimination." The Court treats ALL race-based government action the same way.

SECTION 3: SEX/GENDER DISCRIMINATION

The Standard: Intermediate Scrutiny (*Craig v. Boren, 1976*)

Test: Classification must serve **important** governmental objectives and be **substantially related** to achievement of those objectives.

Enhanced: Must provide an "**exceedingly persuasive justification**" (*VMI/Hogan*)

Key Cases

CASE	HOLDING	PRINCIPLE
<i>Reed v. Reed</i> (1971)	Struck down preference for males as estate administrators	First sex-discrimination win
<i>Craig v. Boren</i> (1976)	Struck down OK beer age law (21 for men, 18 for women)	Established Intermediate Scrutiny
<i>Mississippi Univ. v. Hogan</i> (1982)	All-female nursing school must admit men	"Compensatory" argument fails if it reinforces stereotypes
<i>US v. Virginia (VMI)</i> (1996)	VMI must admit women; VWIL is "pale shadow"	Cannot exclude based on generalizations about "most women"
<i>Sessions v. Morales-Santana</i> (2017)	Struck down citizenship residency disparity	"Leveling down" remedy: took benefit from mothers rather than extending to fathers

Sex-Based Purpose Requirement — *Feeney* (1979)

Rule: Facially neutral law with disproportionate sex-based impact is NOT unconstitutional without proof of **discriminatory purpose**.

The "Because Of" Test: Legislature must have acted "**because of**, not merely in spite of," the adverse effects on women.

Fisher Trap: Foreseeability ≠ Intent. Even if the legislature *knew* a law would disadvantage women, that's insufficient. They must have *wanted* it.

"Benign" Sex Preferences — The "Lady vs. Woman" Test

TYPE	OUTCOME	EXAMPLE
"Lady" Preferences (based on stereotype of female dependency)	STRUCK DOWN	<i>Orr v. Orr</i> (alimony); <i>Wiesenfeld</i> (Social Security)
"Woman" Preferences (based on documented economic disadvantage)	UPHELD	<i>Webster</i> (Social Security formula); <i>Ballard</i> (Navy promotion)

Pregnancy

Rule (*Geduldig v. Aiello*): Excluding pregnancy from disability insurance is NOT sex discrimination (divides "pregnant persons" vs. "non-pregnant persons").

Override: Congress enacted the **Pregnancy Discrimination Act** for employment. But *Geduldig* remains the constitutional rule.

SECTION 4: OTHER CLASSIFICATIONS

Alienage

ACTOR	STANDARD	EXCEPTION
State (general)	Strict Scrutiny	<i>Graham v. Richardson</i>
State (political function jobs)	Rational Basis	Cops (<i>Foley</i>), Teachers (<i>Ambach</i>) — but NOT notaries (<i>Bernal</i>)
Federal Government	Rational Basis (deference)	<i>Mathews v. Diaz</i>
Undocumented Aliens	Rational Basis	Exception: <i>Plyler v. Doe</i> — cannot bar children from public schools (heightened RB)

Age, Disability, Poverty

CLASS	STANDARD	KEY CASE	NOTES
Age	Rational Basis	<i>Murgia</i>	We all age → not "discrete and insular"
Disability	Rational Basis	<i>Cleburne</i>	But see "RB with Bite" when animus present
Poverty	Rational Basis	<i>Rodriguez</i>	School funding disparities upheld

Fisher Tip — Fundamental Rights Bypass: Even if a group isn't suspect (disability), if the law affects a **fundamental right** (voting, courts, travel), Strict Scrutiny may still apply regardless of the classification.

Continued in Part 4...

PART X: THE STATE ACTION DOCTRINE

The 14th Amendment applies ONLY to STATE action. *Private conduct — no matter how discriminatory — is not covered. Civil Rights Cases (1883).*

Decision Tree: Is There State Action?



[Generally NO State Action — DP is a shield, not a sword
 [EXCEPTION: State has CUSTODY of the person (prison, hospital)
 → Affirmative duty to protect arises

Quick Reference: State Action Outcomes

SCENARIO	STATE ACTION?	CASE
Private company town restricts speech	✓ YES	<i>Marsh</i>
Political party excludes voters from primary	✓ YES	<i>Smith v. Allwright</i>
Court enforces racial covenant	✓ YES	<i>Shelley v. Kraemer</i>
Restaurant in public parking garage discriminates	✓ YES	<i>Burton</i>
Private creditor uses sheriff to seize property	✓ YES	<i>Lugar</i>
Athletic association run by public schools	✓ YES	<i>Brentwood</i>
Shopping center bans protesters	✗ NO	<i>Hudgens</i>
Utility company terminates service	✗ NO	<i>Jackson</i>
Private club with liquor license discriminates	✗ NO	<i>Moose Lodge</i>
Nursing home transfers patient (90% state-funded)	✗ NO	<i>Blum v. Yaretsky</i>
Private school fires teacher (99% public money)	✗ NO	<i>Rendell-Baker</i>
Social workers fail to stop child abuse	✗ NO	<i>DeShaney</i>

PART XI: CONGRESSIONAL ENFORCEMENT POWERS

The Statutory Framework

STATUTE	REQUIRES STATE ACTION?	TARGET	SOURCE
42 U.S.C. § 1983 (Civil)	YES ("under color of law")	State actors	14th Amend.
18 U.S.C. § 242 (Criminal)	YES ("under color of law")	State actors	14th Amend.
42 U.S.C. § 1985(3) (Civil)	NO	Private conspiracies	13th/14th Amend.
18 U.S.C. § 241 (Criminal)	NO	Private conspiracies	13th/14th/15th
42 U.S.C. § 1981 (Civil)	NO	Private racial discrimination in contracts	13th Amend.
42 U.S.C. § 1982 (Civil)	NO	Private racial discrimination in property	13th Amend.

The 13th Amendment — The "Green Light" for Private Conduct

Key Distinction: Unlike the 14th Amendment, the 13th Amendment is NOT limited to state action. It bans slavery AND empowers Congress to abolish the "badges and incidents of slavery."

CASE	HOLDING	REACH
<i>Jones v. Alfred H. Mayer</i> (1968)	§ 1982 bars private racial discrimination in property sales	Congress defines "badges of slavery"
<i>Sullivan v. Little Hunting Park</i> (1969)	Extended to community facility membership	Lease-related discrimination
<i>Runyon v. McCrary</i> (1976)	§ 1981 bars private schools from race-based admissions	Commercial operations can't exclude by race
<i>Griffin v. Breckenridge</i> (1971)	§ 1985(3) covers purely private racial conspiracies	Requires "class-based invidiously discriminatory animus"

The 14th Amendment, § 5 – "Appropriate Legislation"

THEORY	DEFINITION	CHAMPION
Remedial	Congress can only provide mechanisms to fix violations the Court has already found	<i>Boerne</i> (dominant)
Prophylactic	Congress can proactively prevent future violations, even those the Court hasn't yet declared	<i>Katzenbach v. Morgan</i> (limited)

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§ 5 Scorecard: What Passed and What Failed

LAW	PASSED?	WHY?	CASE
Voting Rights Act (§ 5 preclearance)	✓	Massive record of state voter discrimination	<i>South Carolina v. Katzenbach</i>
VRA literacy test ban (nationwide)	✓	Unanimous — prejudice was "prevalent throughout the Nation"	<i>Oregon v. Mitchell</i>
FMLA (family care leave)	✓	Gender = heightened scrutiny → easier to show pattern	<i>Nevada v. Hibbs</i>
ADA Title II (access to courts)	✓	Protects fundamental right of court access	<i>Tennessee v. Lane</i>
RFRA	✗	No documented pattern of religious persecution; sledgehammer	<i>City of Boerne</i>
Patent Remedy Act	✗	No pattern of state patent theft; states have own remedies	<i>Florida Prepaid</i>
ADEA (vs. states)	✗	Age = rational basis → almost no "unconstitutional" state behavior	<i>Kimel v. Board of Regents</i>
ADA Title I (employment)	✗	Disability = rational basis → anecdotal record only	<i>Board of Trustees v. Garrett</i>
VAWA (civil remedy)	✗	Targets private actors, not states; § 5 can't reach private conduct	<i>United States v. Morrison</i>
VRA § 4(b) coverage formula	✗	Data 50 years old; "equal sovereignty" violated	<i>Shelby County v. Holder</i>

Shelby County — The VRA Gutted

Holding: § 4(b) coverage formula is unconstitutional because it's based on 40-year-old data that no longer reflects current conditions.

Equal Sovereignty Principle: Federal government must justify treating states differently based on **current** needs, not historical ones.

Ginsburg's Dissent (the "Umbrella"): "Throwing out preclearance when it has worked... is like throwing away your umbrella in a rainstorm because you are not getting wet."

Post-Shelby Reality: - § 5 preclearance is "inoperable" without a coverage formula - § 2 (results test, nationwide) is now the primary tool - *Brnovich v. DNC* (2021) further limited § 2 with restrictive "guideposts"

PART XII: FISHER EXAM ATTACK PROTOCOL

The Universal IRAC Framework

EVERY ANSWER follows this structure:

I – ISSUE

"The issue is whether [specific constitutional provision] prohibits/permits [specific government action]."

R – RULE

State the doctrinal test with citation.
Include the STANDARD OF REVIEW.

A – APPLICATION

This is 70% of your grade.

- Apply EACH element of the test to the facts
- Argue BOTH SIDES (plaintiff then defendant)
- Use "Fisher-isms": discuss, don't just narrate
- Have a THESIS and support it

C – CONCLUSION

State your holding. Be definitive.

Fisher's Writing Expectations

"He wants expository writing. Not narrative. You have a thesis, and then you advance it with support. What works in its favor AND what works against it."

-  Don't be "conclusory" — explain WHY
 -  Discuss the issue's relevance to the problem
 -  Look at law review articles for writing style
 -  Make arguments for BOTH sides before concluding
-

QUICK-REFERENCE: EXAM ISSUE-SPOTTING CHECKLIST

If the question involves a STATE LAW...

ASK...	DOCTRINE	GO TO
Does it burden interstate commerce?	DCC / Pike / Market Participant	Part III
Is there a federal law on the same topic?	Preemption	Part IV
Does it discriminate by race?	EP — Strict Scrutiny	Part IX §2
Does it discriminate by sex?	EP — Intermediate Scrutiny	Part IX §3
Does it burden a fundamental right?	SDP — Strict Scrutiny	Part VII
Does it take property/liberty without process?	PDP — <i>Mathews</i> balancing	Part VIII

If the question involves a FEDERAL LAW...

ASK...	DOCTRINE	GO TO
What is the source of power?	Commerce / Taxing / Spending / N&P / § 5	Part II
Does it commandeer states?	10th Amendment / Anti-Commandeering	Part II §4
Does it condition funds?	Spending Power / <i>Dole</i> / Coercion	Part II §3
Does it abrogate state immunity?	§ 5 / <i>Boerne</i> C&P test	Part XI

If the question involves a PRIVATE ACTOR...

ASK...	DOCTRINE	GO TO
Is there state action?	Run the 7-part State Action tree	Part X
Is it racial discrimination?	13th Amendment / § 1981 / § 1982	Part XI
Is it a conspiracy?	§ 1985(3) / <i>Griffin</i> animus requirement	Part XI

THE "FISHER FIVE" — Must-Know Exam Moves

#	MOVE	WHEN TO USE
1	"The Animus Shortcut"	Rational Basis law that targets an unpopular group → <i>Moreno/Romer/Cleburne</i>
2	"The Double Helix"	Dignity-based claim → argue DP + EP synergy (<i>Obergefell</i>)
3	"The THT Fortress"	Defending a law that burdens a claimed SDP right → <i>Glucksberg/Dobbs</i> history test
4	"The Arlington Heights Hunt"	Facially neutral law with disproportionate racial impact → find procedural/historical "smoke"
5	"The Boerne Audit"	Federal law targeting states under § 5 → check record + C&P + target (state, not private)

LEVELS OF SCRUTINY — FINAL MASTER CHEAT SHEET

SCRUTINY	APPLIES TO	GOVERNMENT MUST SHOW	PLAINTIFF MUST SHOW	GOV'T WINS?
Strict	Race, national origin, fundamental rights, content-based speech restrictions	Compelling interest + Narrowly tailored (least restrictive means)	Classification exists	~Rarely
Intermediate	Sex/gender, illegitimacy, commercial speech	Important interest + Substantially related	Classification exists	~Sometimes
Rational Basis	Age, disability, wealth, economic regulation	Legitimate interest + Rationally related (hypothesized OK)	No rational basis exists	~Almost always govt wins
RB "with Bite"	Animus/hostility toward group	Legitimate interest (animus is NEVER legitimate)	Evidence of animus or irrationality	~Plaintiff wins when animus shown

"The key is not to narrate. You want to discuss. You have a thesis, an idea, and then you advance it by support — what works in its favor and what works against it." — Professor Fisher

END OF MASTER ATTACK OUTLINE